ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the order of Deputy President Mischin dated 9 February 2024 and in response to the Applicants' submissions (**AS**) dated 12 February 2024 opposing the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid.

2. We note for completeness that although the Applicants' have argued against the section 35 orders sought by the Respondent (paragraphs 48 – 62 AS), we do not understand the Tribunal's direction to order a response to this application at this time. Accordingly, these submissions are limited to the application to adjourn or stay Simon Reid's AAT application (2023/3363).

Legal Submissions

3. Paragraphs 35 – 41 of the AS set out some of the key principles set out in the case of *Street Nation Pty Ltd v Australian Communications Authority [2004] AATA 1251* and are not repeated here. This case was further considered in *YFFM and Australian Securities and investments Commission [2009] AATA 489* (attached for ease of reference), where the law is set out in paragraphs 20 – 32 (inclusive).

4. After considering the parties' contentions, Senior Member Penglis in *YFFM,* determined the relevant principles to be:

> *43. I consider the relevant legal principles to be those identified in the Tribunal's decisions to which I have referred and in Sage.*
>
> *44. In particular, I accept the respondent's submission that cases such as McMahon, Re AWB and HLP Financial Planning do not articulate the principles relevant to a consideration of whether or not administrative proceedings (as opposed to civil proceedings) ought to be stayed because of pending or likely criminal charges.*

Lodged on behalf of the Applicant
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45. The questions for determination therefore are whether:

- *the hearing and determination of this matter by the Tribunal may cause the Tribunal to be in contempt of court as prejudicing any subsequent criminal prosecution of the applicant and/or*

- *the proceedings ought be stayed in order to preserve the integrity of the Tribunal's process.*

Application of YFFM to these proceedings

5. Mrs Vida Reid appeared before the Perth Magistrates Court for a mention hearing on 23 February 2024 in relation to the criminal proceedings lodged against her. These criminal proceedings have not progressed as there remains an outstanding legal professional privilege objection in relation to documents obtained pursuant to a search warrant. We understand that the expectation is for this issue to be discussed and, ideally resolved, between the Commonwealth DPP and Mrs Reid's legal team.

6. As a result of the issue set out above, a brief of evidence in relation to Mr Simon Reid has not been sent by the National Disability Insurance Agency (NDIA) to the Commonwealth DPP.

7. For completeness, Mr Simon Reid was offered the opportunity to speak with the NDIA investigators at the time when the search warrant was executed on the marital home, he declined.

8. For the reasons set out in *YFFM*, and in particular in paragraph 48, the Respondent submits "that the prospect of the applicant being required to give evidence, and being subject to cross-examination, in relation to the same transactions which would be the subject of the possible criminal proceedings is sufficient to create a plausible apprehension of injustice and therefore contempt of any criminal proceedings which may be commenced". The only substantive difference in this application is that the Respondent cannot say that criminal proceedings are being actively considered by the Commonwealth DPP, as no brief of evidence has been provided.

9. Furthermore, given the same factual circumstance will need to be considered by the Tribunal in determining whether the banning order made against Simon Reid is reasonable, there is a significant risk that "potential damage…..could be caused to criminal proceedings if the jury were to learn that this Tribunal had made findings against the applicant…." Similarly, to *YFFM*, "the prospect of that occurring in this case is not fanciful given that the banning order and also the Tribunal's decision will be easily searchable on the internet as it will be a published decision of this Tribunal and will be "searchable" on the respondent's website. Then, of course, there is the prospect of the matter being given publicity in the media". It is well known that Mrs Reid's criminal proceedings have been reported in the media.

10. For these reasons, namely both to avoid a situation where the Tribunal may be in contempt of court and to preserve the integrity of the Tribunal process, the respondent submits that the Tribunal should grant this stay.

Clarification/Submissions in response

11. In response to paragraph 33 of the AS, and the submission that "It is clear by the Respondent's T-doc disclosure to the Applicant of only 50 pages, in contrast to Ms Vida Reid's T-doc of 1,162 pages, that the Commissioner's decision for Mr Reid was manifested by using untested evidence and unfounded allegations that before the Court, which he is not part of", the Respondent reminds the Applicants that Ms Vida Reid's T-doc disclosure is the lead bundle for the purposes of these applications and documents that relate to all **three applicants** are included in Mrs Reid's T-doc bundle. Mr Reid's T-doc bundle contains documents that are relevant **only** to Mr Reid. It is therefore not accurate to say there are only 50 documents that are relevant to Mr Reid, there are, in reality 1212 pages of relevant material.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 28 February 2024

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for and on behalf of the Australian Government Solicitor
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